

OPINIONS OF ENGLISH LAWYERS.

Hill, J., writing, not as an English judge but as an English man who knows English law, a note "On immunity of sovereign states in respect of proceeding against maritime property," says that the English admiralty court has had to consider the question in many cases with reference to claims

according to the law civil, the which Court is called the Admiralty Court; where the said strangers' causes are examined, whether the controversy be between themselves or against the king's subjects.—Froude History of England, IV., p. 540.

The French ambassador was not satisfied with such a statement, he was not satisfied with its dignity and marvelled when admitted to the presence of the English Council why they had made their judge inferior to the Admiralty, when the French had made theirs of the Parliament above the Admiralty.

The English Admiralty Court was, at its origin, below the Council and their judges inferior, as the French ambassador was surprised to see, to the admiralty. Really the Admiralty Court went in fear of the Council of State. There are several letters from the Admiralty judges seeking the instruction of the Council as to the decision of causes before them. They write to Cromwell from Doctors' Commons in 1654, "We have long waited an order on the case of Palache on a report to the Council, and his proctor pressing for judgment we remind you thereof and certify that if we receive no order to the contrary we shall let the case go to hearing." (S.P. Dom., Dec. 5th, 1654. See also *ibid*, Oct. 27th, 1653.)

Although the position of the Admiralty Court was so low in England on one hand, it dealt on the other hand with matters quite international and with cases in connection with foreign sovereigns. When the cases were more serious the higher officers came as judges. One day King James came into the High Court of Admiralty at the reading of the cases, and to the amazement of everyone summed up the evidence of all witnesses himself. The Venetian Ambassador took notice of this and wrote home to his government in August, 1609. (Doctors' Commons and The Old Court of Admiralty: A Short History of the Civilian in England by William Senior of the Middle Temple, 1922, pp. 17, 43, 71, 72, 88, 97.)

of immunity by its own sovereign and by various foreign sovereigns, and continues thus :

The principle upon which the English Court acts is established by the decisions of the Court of Appeal in the *Parlement Belge*, 5 P.D. 197 and the *Porto Alexandre*, 1920, P. 30.

It is an application to foreign sovereigns of the rule that the British Sovereign is immune from the jurisdiction of the British Court except in cases where he consents. The British sovereign cannot be made subject to the jurisdiction of his own courts by any form of procedure.

The like immunity, in compliance with the international comity which induces every Sovereign State to respect the independence and dignity of every other sovereign state, is extended to a foreign Sovereign State, such foreign Sovereign State cannot, in the English Courts, be impleaded against its property. It makes no difference whether the Sovereign State is using the property in trade or otherwise. (London Conference Report, p. 4.)

Marsden's " *Collisions at Sea* " (p. 226) is to the same effect. After referring to many cases it states that it is a principle of international law that a sovereign prince or state cannot be sued in a foreign court, and, on the same principle, proceedings in rem cannot be taken against the public ships of a foreign sovereign, and that where a ship belonging to a foreign sovereign negligently causes collision damage no maritime lien attaches which can revive upon a subsequent transfer of the ship to private ownership.

Mr. Nunn, in his little book (*The Principles of*

Probate, Divorce and Admiralty, 1922, pp. 144-145), comes also to the same conclusion. Without referring to any case, he simply states that the jurisdiction of the Admiralty Court extends over all ships whether British or foreign, so long as the foreign ship is not a national ship, such as a man-of-war; that foreign national ships cannot be proceeded against, but if such a ship is the plaintiff in a collision case, a counter-claim can be raised against it.

The only great judge who, in modern time so far as I know, says anything against the immunity of state ships in contrast to the majority of English lawyers and who precisely explains his opinion on this point is Dr. W. G. F. Phillimore. In *The Parlement Belge* (Asp. 4, p. 239) he said, "though as a matter of constitutional law in this country a subject cannot sue the crown, it does not follow that by the comity of nations he should not be able to sue the sovereign of a foreign country. That there are differences between the status of the crown and of foreign sovereigns recognised by our courts is clear; *e.g.*, the crown cannot be compelled to make discovery of documents, whereas a foreign government is compelled."

With this single exception, modern English judges as well as lawyers are unanimous in admitting the immunity of foreign state ships. Therefore we will not be more precise; suffice it to say that it is a settled principle of English law that by the comity of nations the foreign public ship, or